

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2232

By: Munson

AS INTRODUCED

An Act relating to higher education; amending 70 O.S. 2021, Section 2605, as last amended by Section 2, Chapter 274, O.S.L. 2024 (70 O.S. Supp. 2024, Section 2605), which relates to the Oklahoma Higher Learning Access Act; modifying eligibility requirements for the Oklahoma Higher Learning Access Program; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 2605, as last amended by Section 2, Chapter 274, O.S.L. 2024 (70 O.S. Supp. 2024, Section 2605), is amended to read as follows:

Section 2605. A. Each school year, every fifth- through eleventh-grade student in the public and private schools of this state and students who are educated by other means and are in the equivalent of the fifth through eleventh grade shall be apprised, together with the parent, custodial parent, or guardian of the student, of the opportunity for

1 access to higher learning under the Oklahoma Higher Learning
2 Access Program. The Oklahoma State Regents for Higher
3 Education and the State Board of Education shall develop,
4 promote, and coordinate a public awareness program to be
5 utilized in making students and parents aware of the Oklahoma
6 Higher Learning Access Program.

7 B. On a form provided by the Oklahoma State Regents for Higher
8 Education, every public school district shall designate at least one
9 Oklahoma Higher Learning Access Program contact person, who shall be
10 a counselor or teacher, at each public school site in this state in
11 which eighth-, ninth-, tenth-, or eleventh-grade classes are taught.
12 When requested by the State Regents, the State Board of Education
13 shall assist the State Regents to ensure the designation of contact
14 persons. Private schools shall also designate at least one school
15 official as a contact person. For students who are educated by
16 other means, a parent or guardian or other person approved by the
17 State Regents shall be designated the contact person.

18 C. 1. Students who qualify on the basis of financial need
19 according to subsection D or E of this section or who meet the
20 eligibility qualification set forth in subparagraph a of paragraph 1
21 of subsection B of Section 2603 of this title prior to entering the
22 eleventh grade or prior to reaching the age of sixteen (16) and the
23 standards and provisions promulgated by the Oklahoma State Regents
24 for Higher Education shall be given the opportunity throughout the

1 eighth-, ninth-, tenth-, and eleventh-grade years, for students
2 enrolled in a public or private school, or between the ages of
3 thirteen (13) and sixteen (16), for students who are educated by
4 other means, to enter into participation in the program by agreeing
5 to, throughout the remainder of their school years or educational
6 program:

7 a. attend school or an educational program regularly and
8 do homework regularly,

9 ~~b. refrain from substance abuse,~~

10 ~~c. refrain from commission of violent crimes or~~
11 ~~delinquent acts,~~

12 ~~d.~~

13 c. have school work and school records reviewed by
14 mentors designated pursuant to the program,

15 ~~e.~~

16 d. provide information requested by the Oklahoma State
17 Regents for Higher Education or the State Board of
18 Education, and

19 ~~f.~~

20 e. participate in program activities.

21 2. Students who meet the eligibility qualification set forth in
22 subparagraph a of paragraph 1 of subsection B of Section 2603 of
23 this title after completing the eleventh grade or after reaching the
24 age of seventeen (17) shall be given the opportunity prior to

1 reaching the age of twenty-one (21) to enter into participation in
2 the program and shall execute an agreement with provisions as
3 determined by the Oklahoma State Regents for Higher Education.

4 3. The contact person shall maintain the agreements, which
5 shall be executed on forms provided by the Oklahoma State Regents
6 for Higher Education and managed according to regulations
7 promulgated by the Oklahoma State Regents for Higher Education, and
8 the contact person shall monitor compliance of the student with the
9 terms of the agreement. The Oklahoma State Regents for Higher
10 Education are authorized to process student agreements and verify
11 compliance with the agreements. Students failing to comply with the
12 terms of the agreement shall not be eligible for the awards provided
13 in Section 2604 of this title.

14 D. Except as otherwise provided for in subsection E of this
15 section and except for students who qualify pursuant to subsection B
16 of Section 2603 of this title, a student shall not be found to be in
17 financial need for purposes of the Oklahoma Higher Learning Access
18 Program if:

19 1. Beginning with eighth-, ninth-, or tenth-grade students who
20 are enrolled in a public or private school or students between the
21 ages of thirteen (13) and fifteen (15) who are educated by other
22 means who apply for participation in the program in the 2017-2018
23 school year, the federal adjusted gross income of the student's
24 parent(s) exceeds Fifty-five Thousand Dollars (\$55,000.00) per year;

1 2. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
2 students who are enrolled in a public or private school or students
3 between the ages of thirteen (13) and sixteen (16) who are educated
4 by other means who apply for participation in the program in the
5 2021-2022 school year, the federal adjusted gross income of the
6 student's parent(s) exceeds Sixty Thousand Dollars (\$60,000.00) per
7 year;

8 3. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
9 students who are enrolled in a public or private school or students
10 between the ages of thirteen (13) and sixteen (16) who are educated
11 by other means who apply for participation in the program in the
12 2022-2023 school year:

13 a. the federal adjusted gross income of the student's
14 parent(s), who have two or fewer dependent children,
15 exceeds Sixty Thousand Dollars (\$60,000.00) per year,

16 b. the federal adjusted gross income of the student's
17 parent(s), who have three or four dependent children,
18 exceeds Seventy Thousand Dollars (\$70,000.00) per
19 year, or

20 c. the federal adjusted gross income of the student's
21 parent(s), who have five or more dependent children,
22 exceeds Eighty Thousand Dollars (\$80,000.00) per year;

23 4. Beginning with the 2018-2019 academic year, prior to
24 receiving any Oklahoma Higher Learning Access Program benefit award

1 for any year during which the student is enrolled in an institution
2 which is a member of The Oklahoma State System of Higher Education,
3 a postsecondary vocational-technical program offered by a technology
4 center school that meets the requirements to be eligible for federal
5 student financial aid, or a private institution of higher learning
6 located within this state and accredited pursuant to Section 4103 of
7 this title, the federal adjusted gross income of the student's
8 parent(s) exceeds One Hundred Thousand Dollars (\$100,000.00) per
9 year.

10 The determination of financial qualification as set forth in
11 this paragraph shall be based on the income of the student, not the
12 income of the parent(s), if a student:

- 13 a. is determined to be independent of the student's
14 parents for federal financial aid purposes,
- 15 b. was in the permanent custody of the Department of
16 Human Services at the time the student enrolled in the
17 program, or
- 18 c. was in the court-ordered custody of a federally
19 recognized Indian tribe, as defined by the federal
20 Indian Child Welfare Act, at the time the student
21 enrolled in the program.

22 The provisions of this paragraph shall apply to any student who
23 has received an Oklahoma Higher Learning Access Program benefit
24 award after the 2017-2018 school year; and

1 5. The Oklahoma State Regents for Higher Education shall review
2 the determination of financial qualification as set forth in
3 paragraphs 1, 2, and 3 of this subsection if the income from taxable
4 and nontaxable sources of the student's parent(s) includes income
5 received from nontaxable military benefits or income received from
6 the federal Social Security Administration due to the death or
7 disability of the student's parent(s). If the income from taxable
8 and nontaxable sources of the student's parent(s), excluding income
9 received from nontaxable military benefits or income received from
10 the federal Social Security Administration due to the death or
11 disability of the student's parent(s), does not exceed the
12 limitations set forth by paragraphs 1, 2, and 3 of this subsection,
13 the student shall be determined to have met the financial
14 qualification set forth in paragraphs 1, 2, and 3 of this
15 subsection.

16 E. 1. A student who was adopted between birth and twelve (12)
17 years of age while in the permanent custody of the Department of
18 Human Services, in the court-ordered custody of a licensed private
19 nonprofit child-placing agency, or federally recognized Indian
20 tribe, as defined by the federal Indian Child Welfare Act, shall not
21 be found to be in financial need for purposes of the Oklahoma Higher
22 Learning Access Program if at the time the student begins
23 postsecondary education and prior to receiving any Oklahoma Higher
24 Learning Access Program benefit award, the federal adjusted gross

1 income of the student's parent(s) exceeds One Hundred Fifty Thousand
2 Dollars (\$150,000.00) per year. The provisions of this paragraph
3 shall not apply to any student who has received an Oklahoma Higher
4 Learning Access Program benefit award prior to the 2012-2013 school
5 year.

6 2. A student who was adopted between thirteen (13) and
7 seventeen (17) years of age while in the permanent custody of the
8 Department of Human Services, in the court-ordered custody of a
9 licensed private nonprofit child-placing agency, or federally
10 recognized Indian tribe, as defined by the federal Indian Child
11 Welfare Act, shall not be found to be in financial need for purposes
12 of the Oklahoma Higher Learning Access Program if at the time the
13 student begins postsecondary education and prior to receiving any
14 Oklahoma Higher Learning Access Program benefit award, the federal
15 adjusted gross income of the student's parent(s) exceeds Two Hundred
16 Thousand Dollars (\$200,000.00) per year. The provisions of this
17 paragraph shall not apply to any student who has received an
18 Oklahoma Higher Learning Access Program benefit award prior to the
19 2012-2013 school year.

20 3. A student who was placed in the custody of the Department of
21 Human Services at any time during the eighth, ninth, tenth, or
22 eleventh grades and enrolls in the program no later than his or her
23 official date of high school graduation shall not be found to be in
24 financial need for purposes of the Oklahoma Higher Learning Access

1 Program if the federal adjusted gross income of the student exceeds
2 Sixty Thousand Dollars (\$60,000.00) per year.

3 4. Except for students who qualify pursuant to subsection B of
4 Section 2603 of this title, the determination of financial
5 qualification as set forth in this subsection shall be based on the
6 income of the student, not the income of the parent(s), if the
7 student is determined to be independent of the student's parent(s)
8 for federal financial aid purposes. A determination of financial
9 qualification shall not be required for the student who meets the
10 criteria set forth in this subsection at the time the student
11 applies for participation in the program. The provisions of this
12 paragraph shall not apply to any student who has received an
13 Oklahoma Higher Learning Access Program benefit award prior to the
14 2008-2009 school year.

15 F. The financial qualification of a student as set forth in
16 subsections D and E of this section shall be certified by the
17 contact person or by the Oklahoma State Regents for Higher Education
18 on the agreement form provided by the Oklahoma State Regents for
19 Higher Education. The form shall be retained in the permanent
20 record of the student and a copy forwarded to the Oklahoma State
21 Regents for Higher Education.

22 G. Agreements shall be witnessed by the parent, custodial
23 parent, or guardian of the student, who shall further agree to:
24

1 1. Assist the student in achieving compliance with the
2 agreements;

3 2. Confer, when requested to do so, with the school contact
4 person, other school personnel, and program mentors;

5 3. Provide information requested by the Oklahoma State Regents
6 for Higher Education or the State Board of Education; and

7 4. Assist the student in completing forms and reports required
8 for program participation, making applications to institutions and
9 schools of higher learning, and filing applications for student
10 grants and scholarships.

11 H. The Oklahoma State Regents for Higher Education shall
12 promulgate rules for the determination of student compliance with
13 agreements made pursuant to this section.

14 I. The Oklahoma State Regents for Higher Education shall
15 designate personnel to coordinate tracking of program records for
16 the years when students participating in the program are still in
17 the schools or are being educated by other means, provide staff
18 development for contact persons in the schools, and provide liaison
19 with the State Board of Education and local organizations and
20 individuals participating in the program.

21 J. The school district where an Oklahoma Higher Learning Access
22 Program student is enrolled when the student begins participation in
23 the program and any subsequent school district where the student
24 enrolls shall forward information regarding participation by the

1 student in the program to a school to which the student transfers
2 upon the request of the school for the records of the student.

3 K. Students participating in the Oklahoma Higher Learning
4 Access Program shall provide their Social Security number or their
5 student identification number used by their school to the Oklahoma
6 State Regents for Higher Education. The Regents shall keep the
7 numbers confidential and use them only for administrative purposes.

8 SECTION 2. This act shall become effective November 1, 2025.

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